ORDINANCE NO. 434
OF THE
CITY OF RECTOR, ARKANSAS

AN ORDINANCE TO REGULATE INDIVIDUALS, PUBLIC ENTITIES OR PRIVATE ENTITIES, CORPORATIONS, PUBLIC OR PRIVATE FROM HAVING OR PERMITTING CHICKENS, DUCKS, GUINEAS, PHEASANTS, GROUSE, TURKEYS, GEESE, HOGS, GOATS AND SHEEP TO RUN AT LARGE OR TO BE ENCLOSED WITHIN THE CONFINES OF ANY ENCLOSURE OWNED BY THE OWNER OR TENANTS LOCATED IN THE CITY OF RECTOR.

WHEREAS, the Rector City Council has had complaints concerning fowl and hogs within the confines of the city limits of the city of Rector .

WHEREAS, the Rector City Council has decided that it would be in the best interest if the animals, (fowl and swine) be restricted and not be permitted to run at large or be permitted to be in enclosures within the Rector City Limits.

THEREFORE, effective the 1st day of January, 1996, no individual, public entities or private entities, corporation public or private, will be allowed to have any chickens, ducks, geese, guineas, pheasants, turkeys, grouse, hogs, goats or sheep of any kind whatsoever maintained on their premises within any enclosure or to run at large in the City of Rector.

SECTION 1. (DEFINITION) Fowl shall mean any and all fowl domesticated and wild, male and female, single or in plural, which shall not be limited to chickens, ducks, guineas, geese, pheasants, turkeys, grouse, geese, which shall include any and all several domesticated or wild gallinaceous birds. Hogs shall be defined as any group of animals belonging to the swine category. Goats shall be defined as any of various hollow-horned ruminant mammals related to the sheep but of lighter build and with backwardly arching horns, a short tail and straight hair. Sheep shall be defined as any of numerous ruminant mammals related to the goats but stockier and lacking a beard in the male. Enclosure shall mean any enclosed area including buildings, fenced in areas, cages, pens and pastures.

SECTION 2. Nothing herein shall restrict any individual, corporation public or private from having animal or fowl listed above maintained in their own home or premises as pets so long as it does not constitute a nuisance.

SECTION 3. Violation of this ordinance shall be a misdemeanor and the fine for each violation shall be Twenty-five Dollars ($25.00) to One-hundred Dollars ($100.00). Each day of such violation of this order shall constitute a separate offense.

SECTION 4. This ordinance being necessary for the health, safety and welfare of the citizens of Rector and necessary for effective meeting, there being a significant scheduling problem for members of the City Council within the City of Rector, an emergency is declared to exist and this ordinance shall take effect and being in force and after its passage.

Passed this 7th day of October, 1996.

Ronald E. Lay
Mayor

Attest:

Kenneth R Burns
City Recorder